

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #04	CCRB Case #: 202309989	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 09/06/2023 10:15 AM	Location of Incident: Riverside Drive and West 95th Street	18 Mo. SOL 3/6/2025	Precinct: 24
Date/Time CV Reported Sat, 10/21/2023 2:13 PM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Mon, 10/23/2023 10:53 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Edward Lam	21414	964106	024 PCT
2. PO Mateusz Kopec	15093	964098	024 PCT
3. LT Mariela Matosleo	00000	941304	024 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Timothy Burke	05052	945536	024 PCT
2. PO Crystal Beatty	03500	972524	024 PCT
3. PO Daniel Chopra	25005	969585	024 PCT
4. PO Shahel Miah	26604	965060	024 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Mariela Matosleo	Abuse: Lieutenant Mariela Matosleo stopped the vehicle in which § 87(2)(b) was an occupant.	
B . PO Edward Lam	Force: Police Officer Edward Lam used physical force against § 87(2)(b)	
C . PO Mateusz Kopec	Force: Police Officer Mateusz Kopec used physical force against § 87(2)(b)	
D . PO Edward Lam	Abuse: Police Officer Edward Lam searched the vehicle in which § 87(2)(b) was an occupant.	
E . PO Mateusz Kopec	Abuse: Police Officer Mateusz Kopec searched the vehicle in which § 87(2)(b) was an occupant.	

Case Summary

On October 21, 2023, § 87(2)(b) filed this complaint with the CCRB online.

On September 6, 2023, at approximately 10:14AM, Lieutenant Mariela Matosleo, Police Officer Edward Lam, and Police Officer Mateusz Kopec, and other officers from the 24th Precinct were conducting a vehicle checkpoint at Riverside Drive and West 95th Street in Manhattan. § 87(2)(b)'s vehicle was stopped as a result of the checkpoint (**Allegation A: Abuse of Authority, § 87(2)(g)**). PO Lam and PO Kopec pulled § 87(2)(b) out of her vehicle and handcuffed her (**Allegation B: Force, § 87(2)(g)**)(**Allegation C: Force, § 87(2)(g)**). § 87(2)(b) was transported to the 24th Precinct stationhouse, where she was processed. After the incident, § 87(2)(b) reviewed dashcam footage from her vehicle and discovered that PO Lam and PO Kopec searched her vehicle (**Allegation D: Abuse of Authority, § 87(2)(g)**)(**Allegation E: Abuse of Authority, § 87(2)(g)**).

According to Arrest Report § 87(2)(b) (BR13), § 87(2)(b) was arrested for § 87(2)(b). According to Arrest Report § 87(2)(b) (BR14), § 87(2)(b) was arrested for § 87(2)(b).

The investigation received BWC videos for this incident. It is attached to IA #28 (BR12).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Mariela Matosleo stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated (BR1) that she drove a 2022 Black Nissan Rogue and exited the Henry Hudson Parkway highway at the West 95th Street exit. § 87(2)(b) turned left onto Riverside Drive and observed orange cones on the road and a marked NYPD patrol vehicle. PO Lam stood in the middle of Riverside Drive and pointed for § 87(2)(b) to pull over to the right of the road. PO Lam and PO Kopec approached § 87(2)(b) at the driver side and the officers explained that she was at a checkpoint. The officers requested to see § 87(2)(b)'s identification. § 87(2)(b) told the officers that she did not consent to the vehicle stop and would not provide her driver's license and registration. PO Lam asked § 87(2)(b) for her identification again. § 87(2)(b) asked if she had committed a crime and PO Lam replied that she had not. PO Lam told § 87(2)(b) that she was required to present her identification at a vehicle checkpoint. PO Lam and PO Kopec continued to ask § 87(2)(b) for her driver's license and registration. § 87(2)(b) did not comply. LT Matosleo approached § 87(2)(b)'s vehicle, and she and the other officers instructed her to exit the vehicle.

According to PO Lam's BWC video (BR2), at timestamp 5:45, § 87(2)(b) pulls into the vehicle checkpoint. § 87(2)(b) tells PO Lam that she did not consent to the stop. PO Lam instructs § 87(2)(b) to pull her vehicle forward. § 87(2)(b) says she will not. At timestamp 6:03, PO Kopec approaches § 87(2)(b) at the driver side and tells her that all she needs to do is provide her driver's license and registration and she could be on her way. PO Kopec tells § 87(2)(b) that he is not asking for her consent. At timestamp 6:29, § 87(2)(b) asks PO Lam if she committed a crime, and he replies that she had not. At timestamp 7:45, PO Kopec instructs § 87(2)(b) to turn off her vehicle and put it in park. She does not comply. At timestamp 7:50, LT Matosleo instructs § 87(2)(b) to shut her vehicle and she replies that she will not be following the officers' orders.

PO Lam's BWC video (BR15) captures footage after § 87(2)(b)'s arrest and inside the holding cell area of the 24th Precinct stationhouse. At timestamp 2:17, PO Lam explains that during the

checkpoint, he and other officers pulled over every third vehicle on the road. PO Lam tells § 87(2)(b) that her vehicle was one of every third vehicles stopped.

According to NYPD Patrol Guide Procedure 221-16 (BR3), in an authorized checkpoint, motor vehicle operators are to be stopped in a non-arbitrary manner. After stopping a vehicle, it is permissible to request the driver's license.

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Force: Police Officer Edward Lam used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Mateusz Kopec used physical force against § 87(2)(b)

§ 87(2)(b) stated (**BR1**) that PO Lam and PO Kopec reached inside her opened driver window to open her door. § 87(2)(b) covered the door lock with her hand to prevent the officers from unlocking her door. PO Lam and PO Kopec grabbed § 87(2)(b)'s hands, and the officers opened the driver side door. The officers unbuckled § 87(2)(b)'s seatbelt and opened the door. § 87(2)(b) attempted to push PO Lam and PO Kopec away from her but was unable to. PO Lam and PO Kopec grabbed onto § 87(2)(b)'s torso and arms and pulled her out of her vehicle. LT Matosleo approached § 87(2)(b) and grabbed her wrist while PO Lam and PO Kopec applied handcuffs on her. § 87(2)(b) stiffened her body. PO Kopec escorted § 87(2)(b) to the patrol vehicle and placed her inside. PO Lam transported § 87(2)(b) while PO Burke entered § 87(2)(b)'s vehicle and drove it to the 24th Precinct stationhouse.

According to PO Lam's BWC video (**BR2**), at timestamp 8:06, PO Lam reaches inside the opened driver side window and grabs § 87(2)(b)'s left forearm. § 87(2)(b) pulls her arm away and PO Lam lets go of her. At timestamp 8:10, PO Lam unbuckles § 87(2)(b)'s seatbelt, and he and PO Kopec grab her arms. At timestamp 8:40 PO Lam, LT Matosleo, and the other officer place § 87(2)(b) in handcuffs.

According to NYPD Patrol Guide Procedure 221-01 (BR4), when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject.

§ 87(2)(g)

§ 87(2)(g)

Allegation (D) Abuse of Authority: Police Officer Edward Lam searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: Police Officer Mateusz Kopec searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated (BR1) that she was released, and she returned to the 24th Precinct stationhouse to retrieve her vehicle. § 87(2)(b) watched dashcam footage and learned that officers searched her vehicle. § 87(2)(b) did not provide the dashcam footage for the investigation.

According to Property Clerk Invoice #§ 87(2)(b) (BR5), prepared by PO Lam, § 87(2)(b)'s Nissan Rogue and jewelry were vouchered for safekeeping.

According to Property Clerk Invoice #§ 87(2)(b) (BR6), prepared by PO Lam, § 87(2)(b)'s two cellphones, metro card, miscellaneous paper, credit/debit cards, identification cards, insurance card and store cards were vouchered for safekeeping.

According to PO Lam's BWC video (BR7), timestamp 1:00, PO Lam approaches § 87(2)(b)'s vehicle which is parked in the stationhouse parking lot. PO Lam opens the driver side door and searches the center console and cup holder. PO Lam looks inside a tote bag on the front passenger seat. At timestamp 1:32, PO Lam opens the front passenger side glove compartment and looks inside. At timestamp 1:45, PO Lam removes a wallet from the tote bag. PO Lam removes Florida and New York identification cards, looks at them, and places them back inside § 87(2)(b)'s wallet. At timestamp 2:42, PO Lam opens the rear passenger side door and looks inside. PO Lam is holding § 87(2)(b)'s wallet in one hand. At timestamp 3:00, PO Lam places his hand inside the left rear passenger side door cup holding and then places his hand under the rear left passenger seat. At timestamp 3:10, PO Lam returns to the driver side and looks under the seat. PO Lam leaves § 87(2)(b)'s wallet on the driver seat. At timestamp 3:34, PO Lam returns to the left rear passenger side and picks up a blue bag from the leg space and looks inside it. PO Lam looks inside a plastic bag in the right passenger seat leg space. At timestamp 3:53, PO Lam opens the right rear passenger side floor and picks up a plastic bag from the leg space and places it on the seat. At timestamp 4:19, PO Lam opens the trunk door and looks inside. At timestamp 5:09, PO Kopec approached the opened driver side door and looks inside.

According to NYPD Patrol Guide Procedure 218-13 (BR8), officers must thoroughly search the interior of any vehicle that comes into police custody. Officers are permitted to search the interior of the vehicle thoroughly. All valuable items found inside the vehicle must be invoiced on a separate Property Clerk Invoice and property of little value that is left inside the vehicle should within reason be listed in the officer's activity log.

In People v. Johnson, 1 N.Y.3d 252 (2003) (BR9), the court ruled that the difference between inventory search and a general rummaging of a vehicle in order to discover incriminating evidence is the preparation of a meaningful inventory list of items within.

§ 87(2)(g)
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 17**).
- LT Matosleo has been a member of service for seventeen years and has been the subject in four CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO Kopec has been a member of service for six years and has been a subject in four CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)
- PO Lam has been a member of service for six years and has been the subject in five CCRB complaints and eleven allegations, of which four were substantiated.
 - [202207350] involved substantiated allegations of search of a person, discourteous word, offensive language other, and failure to provide RTKA card against PO Lam. The Board recommended charges and the NYPD imposed Command Discipline A. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York (**BR10**) claiming violation of her go given rights, loss of wages, damage to her reputation and harm to her person and property and seeking an undisclosed sum as redress. There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 04

Investigator:	<u>Jeffrey Tsui</u>	INV Jeffrey Tsui	05/10/2024
	Signature	Print Title & Name	Date
Squad Leader:	<u>Raquel Velasquez</u>	IM Raquel Velasquez	05/10/2024
	Signature	Print Title & Name	Date
Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date